

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index #

**ROBYN WRIGHT
ANALIE JAVIER**

Date Filed:

Plaintiff designates

Plaintiffs,**Kings County**
as place of trial**-against-**The basis of venue is
**Plaintiff's Residence
And Site of Occurrence****CITY OF NEW YORK
NEW YORK CITY POLICE DEPARTMENT
NYPD OFFICER DAVID GRIECO
NYPD OFFICER ARDOLINO (Badge No. 3101
JOHN DOES NO. 1 through 5 As Yet
Unidentified NY PD Officers****Plaintiff Wright
resides at
226 Montauk Street
Brooklyn New York
Plaintiff Javier
resides at
393 Bradford Street
Brooklyn New York****Defendants****SUMMONS****TO THE ABOVE NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance , on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: August 1, 2018
New York N.Y.



JOEL M. GLUCK
Attorney for Plaintiff
305 Broadway Suite 1427
New York, N.Y. 10007
(212) 323-7432

Defendants' Addresses:

CITY OF NEW YORK
One Centre Street
New York, N.Y. 10007

NEW YORK CITY POLICE DEPARTMENT
One Centre Street
New York, N.Y. 10007

NYPD Officer DAVID GRIECO
One Police Plaza
New York, N.Y. 10007

NYPD Officer ARDOLINO (Badge No.3101)
One Police Plaza
New York, N.Y. 10007

JOHN DOES No. 1 through No. 5
As yet Unidentified NY PD Officers believed to be assigned to
75th Precinct
One Police Plaza
New York, N.Y. 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index #

Date Filed

**ROBYN WRIGHT
ANALIE JAVIER****Plaintiffs,****-against-****VERIFIED COMPLAINT****CITY OF NEW YORK
NEW YORK CITY POLICE DEPARTMENT
NYPD OFFICER DAVID GRIECO, in his Official
And Individual Capacities
NYPD OFFICER ARDOLINO (Badge No. 3101)
In his Official and Individual Capacities
JOHN DOES NO. 1 through 5 As Yet
Unidentified NY PD Officers, In their
Official and Individual Capacities****Defendants**

The plaintiffs, **ROBYN WRIGHT and ANALIE JAVIER** by their attorney JOEL M. GLUCK, as for their verified complaint respectfully allege as follows:

1. Plaintiff, **ROBYN WRIGHT** was on the date of occurrence herein and is at present a resident of the State of New York, County of Kings and at the time of the occurrence described herein and at present has a residence at 226 Montauk Avenue Brooklyn New York 11208.

2. Plaintiff **ANALIE JAVIER** was on the date of occurrence herein and is at present a resident of the State of New York, County of Kings and at the time of the occurrence described herein and at present has a residence at 393 Broadford Street Brooklyn New York 11207.

3. That on the date of the occurrence described herein, Defendant **CITY OF NEW YORK** was a municipal corporation organized under the laws of the State of New York with Office of the Comptroller at 1 Centre Street New York

4. That the defendant **CITY OF NEW YORK** operates a municipal police department with various precincts, most particularly a New York City Police Department Precinct No. 75 at 1000 Sutter Avenue Brooklyn New York 11208

5. That on the date of the occurrence described herein, the defendant NYPD Office **DAVID GRIECO**, was on information and belief an employee of the New York City Police Department and was assigned to the 75th Precinct, 1000 Sutter Avenue Brooklyn New York 11208.

6. That on the date of the occurrence described herein, NYPD OFFICER **ARDOLINO** Badge No . 3101 was an employee was of the New York City Police Department and on information and belief was assigned to work at the 75th Precinct at the above address.

7. That on the date of occurrence described herein, NYPD Officers JOHN DOE Nos. 1-5 were Police Officers employed by the New York City Police Department and were assigned, on information and belief, to the 75th Precinct.

8. That at all times relevant herein, the CITY OF NEW YORK, acting through the NEW YORK CITY POLICE DEPARTMENT was responsible for the policy, practice, supervision, implementation and conduct of all NEW YORK CITY POLICE DEPARTMENT matters and was responsible for the appointment, training, supervision and conduct of the NEW YORK CITY POLICE DEPARTMENT and for the individual Police Officer Defendants named herein.

9. At all times relevant herein the defendant, CITY OF NEW YORK was responsible for ensuring that the NEW YORK CITY POLICE DEPARTMENT personnel, including the individual NYPD Defendants, named herein, obey the laws of the United States, and New York State including the Constitution of the United States and the State of New York.

10. That the Defendant CITY OF NEW YORK assumes the risk incidental to the maintenance of a police force and the risks incidental to the conduct of individual officers, including those named herein.

11. That the CITY OF NEW YORK is responsible for the practices, policies and customs of the NEW YORK CITY POLICE DEPARTMENT as well as the hiring, screening, training, supervising, controlling, retaining and disciplining of

the persons so employed by the New York City Police Department, including the individual defendants named herein.

12. At all times herein after mentioned, Defendant DAVID GRIECO was assigned to the 75th Precinct.

13. At all times hereinafter mentioned, Defendant ARDOLINO Badge No. 3101 was assigned to the 75th Precinct.

14. At all times Police Officers, Defendants JOHN DOES No. 1 -5 was assigned to the 75th Precinct.

15. On May 10, 2017 the NEW YORK CITY POLICE DEPARTMENT employed the aforementioned police officers who were agents, servants and/or employees of the New York City Police Department.

16. At all times hereinafter mentioned, the individually named Defendants were at all times acting under color of state law, under the color of the statutes, ordinances, customs, policies and practices of the State of New York, City of New York and were also acting within the scope of and in furtherance of their employment when engaging in the conduct described herein.

17. That Defendant CITY OF NEW YORK, is liable directly and vicariously for conduct of the Individually named Defendants which while acting within the scope of their duties, inured to and was performed for their personal benefit.

18. At all times relevant herein, Plaintiff ROBYN WRIGHT was a lawful tenant occupying Apartment 1A at 226 Montauk Avenue Brooklyn New York and was entitled to an expectation of privacy and freedom from unlawful search of her residence under the U.S. Constitution, 4th and 14th Amendment and the NYS Constitution.

19. At all times relevant herein, Plaintiff ROBYN WRIGHT was a lawful tenant occupying Apartment 1A at 226 Montauk Avenue Brooklyn New York and was entitled to an expectation of privacy and freedom from unlawful seizure of her person under the U.S. Constitution, 4th and 14th Amendment and the NYS Constitution.

20. That at all times relevant herein, Plaintiff ROBYN WRIGHT had an expectation that on her arrest, whether lawful or unlawful, her personal property would be protected from loss and that the arresting officers and the CITY OF NEW YORK POLICE DEPARTMENT would use extraordinary care to protect said property from loss.

21. That at all times relevant herein, Plaintiff ROBYN WRIGHT had an expectation that on her arrest, whether lawful or unlawful, her personal property would be protected from loss and that the arresting officers and the CITY OF NEW YORK POLICE DEPARTMENT would use reasonable care to protect said property from loss.

22. That at all times relevant herein, Plaintiff ANALIE JAVIER, was a lawful guest on the premises of 226 Montauk Avenue Brooklyn New York Apartment 1A and was entitled to an expectation of privacy and freedom from unlawful search and seizure of her person under the U.S. Constitution, 4th and 14th Amendment and the NYS Constitution.

23. That at all times relevant herein, Plaintiff ANALIE JAVIER had an expectation that on her arrest, whether lawful or unlawful, her personal property would be protected from loss and that the arresting officers and the CITY OF NEW YORK POLICE DEPARTMENT would use extraordinary care to protect said property from loss.

24. That at all times relevant herein, Plaintiff ANALIE JAVIER had an expectation that on her arrest, whether lawful or unlawful, her personal property would be protected from loss and that the arresting officers and the CITY OF NEW YORK POLICE DEPARTMENT would use reasonable care to protect said property from loss.

25. That on May 10, 2017, the defendant including the Individual defendants, DAVID GRIECO, ARDOLINO, JOHN DOE NO. 1-5, entered the premises of 226 Montauk Avenue Brooklyn New York, Apartment 1 A without search warrant or probable cause to believe a crime had been committed and without the consent of the lawful occupants of the premises.

26. That on May 10, 2017, the defendants including the Individual defendants, DAVID GRIECO, ARDOLINO, JOHN DOE NO. 1-5, entered the premises of 226 Montauk Avenue Brooklyn New York, Apartment 1 A by misrepresentation and trickery without search warrant or probable cause to believe a crime had been committed and without the consent of the lawful occupants of the premises.

27. That on May 10, 2017, the defendants including the Individual defendants, DAVID GRIECO, ARDOLINO, JOHN DOE NO. 1-5, entered the premises of 226 Montauk Avenue Brooklyn New York, Apartment 1 A, by force without search warrant or probable cause to believe a crime had been committed, and without the consent of the lawful occupants of the premises.

28. That on May 10, 2017, the Defendant CITY OF NEW YORK by its agents, servants and employees, forcibly removed Plaintiff ROBYN WRIGHT from the aforesaid premises and Plaintiff was brought in handcuffs to the 75th Precinct, arrested and taken to Central Booking and held for several days.

29. That on May 10, 2017 the Defendant CITY OF NEW YORK by its agents, servants and employees, detained and restrained the Plaintiff ROBYN WRIGHT; Plaintiff was brought in handcuffs to the 75th Precinct, arrested and taken to Central Booking and held for several days.

30. That on May 10, 2017, the Defendant CITY OF NEW YORK by its agents, servants and employees, forcibly removed Plaintiff ANALIE JAVIER from the aforesaid premises. Plaintiff was brought in handcuffs to the 75th Precinct, arrested and taken to Central Booking and held for several days.

31. That on May 10, 2017 the Defendant CITY OF NEW YORK by its agents, servants and employees, detained and restrained the Plaintiff ANALIE JAVIER. Plaintiff was brought in handcuffs to the 75th Precinct, arrested and taken to Central Booking and held for several days.

32. In effecting the restraint and detention of the Plaintiffs ROBYN WRIGHT and ANALIE JAVIER, the said defendants, their employees, agents, servants and employees acted in concert.

33. That the above Plaintiffs were each arrested by the Individual Defendants named herein acting within the scope of their authority and employment and their acts were done in furtherance of the business of the Defendant CITY OF NEW YORK.

34. That the Plaintiffs herein, as a result of their illegal, unwarranted restrain, detention and arrest, lost their liberty, suffered economic loss including the loss of several days pay, suffered loss of personal property including cell phones, cash and articles of sentimental value.

35 That the Plaintiffs herein, as a result of the illegal, unwarranted restrain, detention and arrest, suffered mental pain. emotional distress, anguish, humiliation, shame, disgrace.

36. That months after the arrest of the Plaintiffs on May 10, 2017, and after a number of appearances in Criminal Court, all charges against the Plaintiffs were dismissed.

AS AND FOR A FIRST CAUSE OF ACTION

37. The Plaintiffs repeat, reiterate and reallege each and every allegation in the preceding paragraphs as though fully set forth herein.

38. That the arrest of the Plaintiffs ROBYN WRIGHT and ANALIE JAVIER, their restraint and detention was without justification, provocation, probable cause, and was done wantonly, maliciously, recklessly without any fault on the part of the Plaintiffs and contrary to law.

39. That said restraint and detention constituted a battery against the Plaintiffs herein

40. That solely as a result of the above actions of the Defendants, and without any contribution on the part of the Plaintiffs, the Plaintiffs herein suffered emotional pain, anguish, mental distress.

41. That the amount of the damages sustained by the Plaintiffs exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction over the matter herein.

**AS AND FOR A SECOND CAUSE OF ACTION
(Under 42 U.S.C. § 1983)**

42. The Plaintiffs repeat, reiterate and reallege each and every allegation in the preceding paragraphs as though fully set forth herein.

43. Defendants under color of state law, subjected the Plaintiffs ROBYN WRIGHT and ANALIE JAVIER to the foregoing acts and omissions thereby depriving the plaintiff of the rights privileges and immunities secured by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution including without limitation deprivation of the following rights: (a) freedom from unreasonable search of their dwelling and person; (b) freedom from unreasonable seizure of their person; (c) freedom from having Police fabricate evidence.

44. That the arrest and continued detention of the Plaintiffs was effectuated by the Defendants without probable cause or any semblance of a lawful basis. Defendant at the time of this arrest and detention, knew or should have known that the allegations or any future allegations as to the Plaintiffs would be false.

45. That throughout the aforesaid period, Plaintiffs were handcuffed, not formally apprised of their rights, nor for several days formally apprised of the

Charges brought against them.

46. Plaintiff ROBYN WRIGHT was arrested, detained and suffered loss of her liberty as a direct and proximate result of attempting to exercise freedom of speech by lawfully recording the wrongful arrest of others lawfully on the premises.

47. Plaintiffs ROBYN WRIGHT and ANALIE JAVIER, were detained at a time that said defendants, their agents, servants and employees who arrested and imprisoned the Plaintiffs had actual knowledge of the fact that Plaintiffs had not committed any crimes and knew that there was no lawful basis for their initial or continued detention.

48. That the arrest and imprisonment of the Plaintiffs by the Defendants was a false arrest false imprisonment, an unjust imprisonment done without any warrant or pretense of legal process, maliciously and without reasonable basis or probable cause.

49. Solely by reason of the foregoing and without contribution or provocation on the part of the Plaintiffs, the actions of the Defendants deprived the Plaintiffs of their liberty, subjected them to ridicule and derision by those aware of their arrest, caused them to be deprived of the companionship of their family and were otherwise harmed.

50. By reasons of the Defendants violation of the Plaintiff's rights under

the U.S. Constitution and the New York State Constitution protected from deprivation under 42 U.S. C. § 1983, Plaintiffs were caused to suffer emotional injuries mental anguish, loss of constitutional rights and economic injury as described herein.

51. That the amount of the damages sustained by the Plaintiffs exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction over the matter herein.

**AS AND FOR A THIRD CAUSE OF ACTION
(MONELL CLAIM)**

52. The Plaintiffs repeat, reiterate and reallege each and every allegation in the preceding paragraphs as though fully set forth herein.

53. All of the acts and omissions by the named and unnamed defendant police officers were carried out pursuant to overlapping policies and practices of the City of New York and the New York City Police Department were in existence at the time of the conduct alleged herein and were engaged in with full knowledge, consent and cooperation and under supervisory authority of the Defendant CITY OF NEW YORK and New York City Police Department.

54. Defendant CITY OF NEW YORK, by their policy making agents, servants and employees authorized sanctioned and/or ratified the individual defendants' wrongful acts and/or failed to prevent or stop those acts and/or

encouraged those acts to continue.

55. The actions of the individual police defendants resulted from and were taken pursuant to the following defacto policies and or well settled customs and practices of the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT:

(a) Members of the 75th Precinct were encouraged to engage in unlawful and unconstitutional violations, including but not limited to warrantless and unauthorized searches and arrests, without probable cause, systemic submissions of false reports and observations, all done with the actual or defacto knowledge and approval of their supervisors and commanders.

(b) tacitly accept and encourage a code of silence wherein Police officers refuse and fail to reports other officers' misconduct or to tell false and incomplete stores designed to cover for other officers' misconduct.

(c) fail to discipline officers for testifying falsely, submitting false reports, wrongfully arresting civilians for the exercise of constitutional rights.

56. The Defendant CITY OF NEW YORK, established a custom, policy or practice of encouraging, approving or tolerating the New York City Police Department's acts of misconduct, in particular, false and unauthorized search and seizure, unlawful arrest, restraint and detention.

57. The Defendants were deliberately indifferent to the use of improper

procedures in the arrest and detention of civilians and established a custom, policy and practice of encouraging, approving and/or tolerating the use of improper procedures by the New York City Police Department.

58. The defendants' actions were undertaken under color of state law and would not have existed but for said defendants' use of their official power.

59. At all times relevant to the complaint herein, the defendant municipality, CITY OF NEW YORK, had de facto policies, practices, customs and usages, including but not limited to the improper and inadequate supervision of the police officers of the 75th Precinct operating in plainclothes in the County of Kings which were a direct and proximate cause of the unconstitutional conduct alleged herein.

60. At all times relevant to the complaint herein, defendant CITY OF NEW YORK, failed to properly train, screen, supervise or discipline its employees and police officers, including individual defendants named herein and failed to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline the individual defendants.

61. The policies, practices, customs and usages and the failure to properly train, screen, supervise or discipline were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of the Plaintiffs' constitutional rights as guaranteed under 42 U.S.C. § 1983 and the

United States Constitution.

62. As a result of the foregoing, the Plaintiffs suffered emotional distress and were otherwise damaged and injured.

63. That the amount of the damages sustained by the Plaintiffs exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction over the matter herein.

**AS AND FOR A FOURTH CAUSE OF ACTION
(FALSE ARREST AND IMPRISONMENT)**

64. The Plaintiffs repeat, reiterate and reallege each and every allegation in the preceding paragraphs as though fully set forth herein.

65. That on May 10, 2017, the Plaintiffs were detained, arrested, imprisoned, restrained and lost their liberty due to the intentional and malicious acts of the individual Defendants, acting within the scope of their duties

66. That Plaintiffs were conscious of and did not consent to their arrest, restraint, imprisonment and loss of liberty.

67. That the actions of the defendants to arrest, restrain and imprison the Plaintiffs were not privileged, warranted, justified or supported by probable cause and were done with malice and with reckless disregard to the rights of the Plaintiffs.

68. That the Defendants intended to arrest, restrain and imprison the Plaintiffs.

69. That solely by reason of the foregoing and without contribution or provocation on the part of the Plaintiffs, the actions of the Defendants in falsely arresting and imprisoning the Plaintiffs caused them mental injury, loss of reputation, subjected them to scorn and ridicule.

70. That the amount of the damages sustained by the Plaintiffs exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction of the causes of action herein.

71. That the acts of the defendants were wanton, malicious and intended to cause the plaintiffs injury and renders the Defendants subject to punitive damages in an amount to be determined by the Court.

**AS AND FOR A FIFTH CAUSE OF ACTION
(MALICIOUS PROSECUTION)**

72. The Plaintiffs repeat, reiterate and reallege each and every allegation in the preceding paragraphs as though fully set forth herein.

73. That on May 10, 2017, the Defendants caused, and directed the arrest of the Plaintiffs commencing a criminal proceedings against each of them for alleged felonies.

74. That all criminal proceedings were dismissed in favor of the Plaintiffs constituting a final and determinative favorable outcome.

75. That the Defendants acted to maliciously prosecute the Plaintiffs

causing their arrest and loss of liberty.

76. That in arresting the Plaintiff and charging them with criminal conduct the Defendants had no probable cause or reasonable basis or grounds for the prosecution of the Plaintiffs, and the lack of probable cause was known to the Defendants at the time criminal proceedings were instituted.

77. That the Defendants acted with Malice and malign intent to cause the arrest and prosecution of the Plaintiffs.

78. That the Plaintiffs sustained emotional injury mental anguish, humiliation and ridicule as a result of their prosecution by the Defendants and were injured in an amount to be determined by the Court.

79. That the arrests of the Plaintiff by the defendants were wanton, malicious and intended to cause the plaintiffs injury and renders the Defendants subject to punitive damages in an amount to be determined by the Court.

**AS AND FOR A SIXTH CAUSE OF ACTION
(INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS)**

80. The Plaintiffs repeat, reiterate and reallege each and every allegation in the preceding paragraphs as though fully set forth herein.

81. That the wrongful arrest, detention and restraint of the Plaintiffs by the individual Defendants was outrageous, beyond the norms acceptable to civil society and subjected them to emotional distress and injury.

82. That the Defendants acted intentionally and with the desire to cause the Plaintiffs emotional distress and injury or were acting under circumstances known to them which made it substantially certain that their actions would cause emotional distress, or were reckless and indifferent to the certainty that their conduct would cause the Plaintiffs emotional injury.

83. That the actions of the individual defendants caused Plaintiffs to be in fear for their own safety, as they witnessed the assault of the defendants on others within the premises at the time of their arrest.

84. That as a direct and proximate result of the intentional emotional injury and distress inflicted on the Plaintiffs, by the Defendants, they have been injured in an amount to be determined by the Court.

85. That the Plaintiffs sustained emotional injury mental anguish, humiliation and ridicule as a result of their prosecution by the Defendants and were injured in an amount to be determined by the Court.

**AS AND FOR A SEVENTH CAUSE OF ACTION
(CONVERSION)**

86. The Plaintiffs repeat, reiterate and reallege each and every allegation in the preceding paragraphs as though fully set forth herein.

87. That on arrest of the Plaintiffs, personal property including each of the Plaintiff's Cell Phones and cash was taken from them by the Defendants and not returned by the Individual Defendants or by the Defendant CITY OF NEW YORK.

88. That money credit cards and cell phones belonging to each Plaintiff on their person was taken, not secured or vouchered and, upon information and belief taken by the Defendants.

89. That Plaintiff ROBYN WRIGHT had a sum of money in excess of \$4,000,00 in her room on the premises where she was lawfully residing at 226 Montauk Avenue Brooklyn New York, and said money was removed from the premises and taken.

90. That upon information and belief, the money and personal possessions of the Plaintiffs were intentionally, recklessly and wantonly taken by the Defendants and plaintiffs were deprived of their use and enjoyment.

91. That the Plaintiffs were damaged in an amount to be described most particularly in Bills of Particulars to be furnished by the Plaintiffs.

92. That as a result of the conversion of the Property of the Plaintiffs, the defendants are liable to them for the amount of the loss, consequential damages and punitive damages in an amount to be determined by the Court.

**AS AND FOR AN EIGHTH CAUSE OF ACTION
(NEGLIGENCE)**

93. The Plaintiffs repeat, reiterate and reallege each and every allegation in the preceding paragraphs as though fully set forth herein.

94. That on May 10, 2017, the Defendants obtained custody and control

of personal possessions of the Plaintiffs including but not limited to cell phones, wallets, currency and said personal property was never returned to the Plaintiffs.

95. That the individual Defendants and the City of New York, liable for the acts of its employees and agents were negligent, reckless and careless in the handling and disposal of the Plaintiffs' property causing said property to be lost and/or destroyed.

96. That the defendants failed to use reasonable care in the custody and control and safekeeping of Plaintiff's property.

97. That the Defendants on the day of their arrest of the Plaintiff searched the property at 226 Montauk Avenue Apartment 1A, and after the Plaintiffs were arrested and removed to the 75th Precinct, the Defendants left the property and failed to secure and lock the apartment, leaving the apartment open and subject to theft and vandalism.

98. That as a direct and proximate result of the Defendants' negligent and careless failure to lock and secure the apartment, personal property of Plaintiff ROBYN WRIGHT was removed from the apartment and /or damaged, causing the plaintiff economic injury and emotional distress due to the loss of items of sentimental value.

99. That the Defendants in searching the Plaintiff ROBYN WRIGHT'S apartment were negligent, careless and reckless in the handling of the plaintiff's

property causing damage to possessions of sentimental value, including but not limited to family photographs.

100. That as a direct and proximate result of the negligence of the defendants, Plaintiffs suffered economic injury, loss of possessions, monetary loss and emotional injury due to the loss of possessions of sentimental value.

101. That the Plaintiff's damages as a result of the negligence of the Defendants, exceeds the monetary limit of all lower courts that would otherwise have jurisdiction over the claims herein.

**AS AND FOR A NINTH CAUSE OF ACTION
(MISHANDLING OF A BAILMENT)**

102. The Plaintiffs repeat, reiterate and reallege each and every allegation in the preceding paragraphs as though fully set forth herein.

103. That the Defendants wrongfully arrested the Plaintiffs on May 10, 2017 and that the Defendants seized and held the Plaintiffs' property including cell phones, credit cards, cash as incidental to and part of the defendants' arrest procedure and failed to voucher and record said property

104. That as to the Plaintiffs' property, the Defendants were bailees required to use extraordinary care in the safeguarding of Plaintiffs' property.

105. That as to the Plaintiffs' property the Defendants were bailees and required to use reasonable care in the safeguarding of the Plaintiff's property

106. That the property seized and held by the Defendants as bailees was

lost, stolen and misplaced and not returned to the Plaintiffs causing the latter injury.

107. That the Defendants failed to use extraordinary care in safeguarding the Plaintiffs' property entrusted to them as bailees resulting in its loss and are liable to the plaintiffs.

108. That the Defendants failed to use reasonable care and were negligent, reckless and careless in the handling of the property entrusted to them as bailees and are liable to the plaintiffs.

109. That the Defendants are liable to the Plaintiff's for the their improper and negligent handling of the Plaintiffs' property as bailees, in an amount to be determined by the Court.

110. That the Plaintiff's damages as a result of the defendants breach of their duties as bailees, exceeds the monetary limit of all lower courts that would otherwise have jurisdiction over the claims herein.

111. That prior to the commencement of this action and within ninety (90) days after the happening of the occurrence herein, Notices of Claim were served upon the defendant, CITY OF NEW YORK by service on the defendant Comptroller by certified mail return receipt for each Plaintiff.

112.. That the New York City Comptroller's Office duly assigned claim numbers to this claim: Claim No. 2017 PI 019890 was assigned to the Claim of ROBYN WRIGHT and Claim No. 2017 PI 022380 was assigned to the Claim of

ANALIE JAVIER.

113. That the Claimants appeared for and participated in statutory hearings under General Municipal Law Section 50 (h): ROBYN WRIGHT appeared for a statutory hearing on May 23, 2018 and ANALIE JAVIER appeared for a statutory hearing on December 28, 2017.

114. That more than thirty days (30) have elapsed since the service of said Notices of Claim and said defendants have failed, neglected and refused to adjust same prior to the commencement of this action

115. That the plaintiffs have duly complied with all statutory provisions and laws applicable to the defendants, and have duly and timely complied with all the conditions precedent to the making of this claim and the bringing of this action, and that this claim has been presented, and that this action has been commenced within the period of time prescribed and provided by statute and law and is timely commenced within a year and ninety days of the occurrence described herein.

116. That the Plaintiffs demand jury trial of the causes of action described herein.

117. That the damages of the Plaintiffs herein exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction over the claims described herein.

118. That the Plaintiffs demand punitive damages to the extent permitted by

law in an amount to be determined by the Court.

WHEREFORE, Plaintiffs demand judgment against the Defendants on the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth and Ninth Causes of Action in an amount to be determined by the Court together with the costs and disbursements of this action

Dated: New York, New York
August 1, 2018

Yours etc.,



Joel M. Gluck, Esq.
Attorney for Plaintiffs
305 Broadway Suite 1427
New York, N.Y. 10007
Tel. 212 323-7432
Fax (718) 852-0185

VERIFICATION

STATE OF NEW YORK)

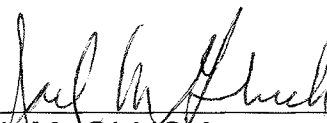
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COUNTY OF NEW YORK)

The undersigned, an attorney duly admitted to practice in the courts of the State of New York, hereby affirms under the penalties of perjury:

Affirmant has read the foregoing complaint and knows the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief, and as to those matters, deponent believes it to be true; and the reason this verification is made by the affirmant and not by the plaintiffs is because the plaintiffs ROBYN WRIGHT and ANALIE JAVIER are not within the county where affirmant has his office. The grounds for affirmant's knowledge are communications with the plaintiffs and plaintiff's' records which affirmant has reviewed.

Dated: New York, N.Y. 10007
August 1, 2018



JOEL M. GLUCK
Attorney for Plaintiffs
Robyn Wright and
Analie Javier

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index #
Date Filed

**ROBYN WRIGHT
ANALIE JAVIER**

Plaintiffs,

-against-

**CITY OF NEW YORK
NEW YORK CITY POLICE DEPARTMENT
NYPD OFFICER DAVID GRIECO, in his Official
And Individual Capacities
NYPD OFFICER ARDOLINO (Badge No. 3101)
In his Official and Individual Capacities
JOHN DOES NO. 1 through 5 As Yet
Unidentified NY PD Officers, In their
Official and Individual Capacities**

Defendants

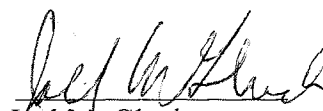
SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF JOEL M. GLUCK

Attorneys for Plaintiff(s)
305 Broadway Suite 1427
New York, N.Y. 10007
Telephone: 212 323 -7432
Fax No. 718-852-0185

Pursuant to 22 NYCRR130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: New York, New York
August 1, 2018


Joel M. Gluck